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All-electric codes and outdoor heat: what electrification policy means for patios and terraces

Do all-electric building codes ban gas patio heaters? NYC, California, Washington, Denver and Massachusetts rules, read precisely, plus electric-ready design.

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All-electric codes and outdoor heat

Mostly, the electrification laws in force today do not name patio heaters. They stop gas from being piped into **new buildings**, or make heat pumps the default for **indoor** space and water heating. That still reaches the terrace: a new all-electric building has no gas line to connect a built-in heater to, Berkeley-style definitions ran the restriction to the property line, and commercial energy codes already require outdoor heat to be radiant and switched off when no one is there. Designing the outdoor space electric from the start removes the risk.

Facts in this guide are stated as of 29 October 2026. Laws, rulings and code adoptions change; confirm each one with the authority having jurisdiction before you rely on it.

Eclipse heaters over a restaurant terrace under an awning

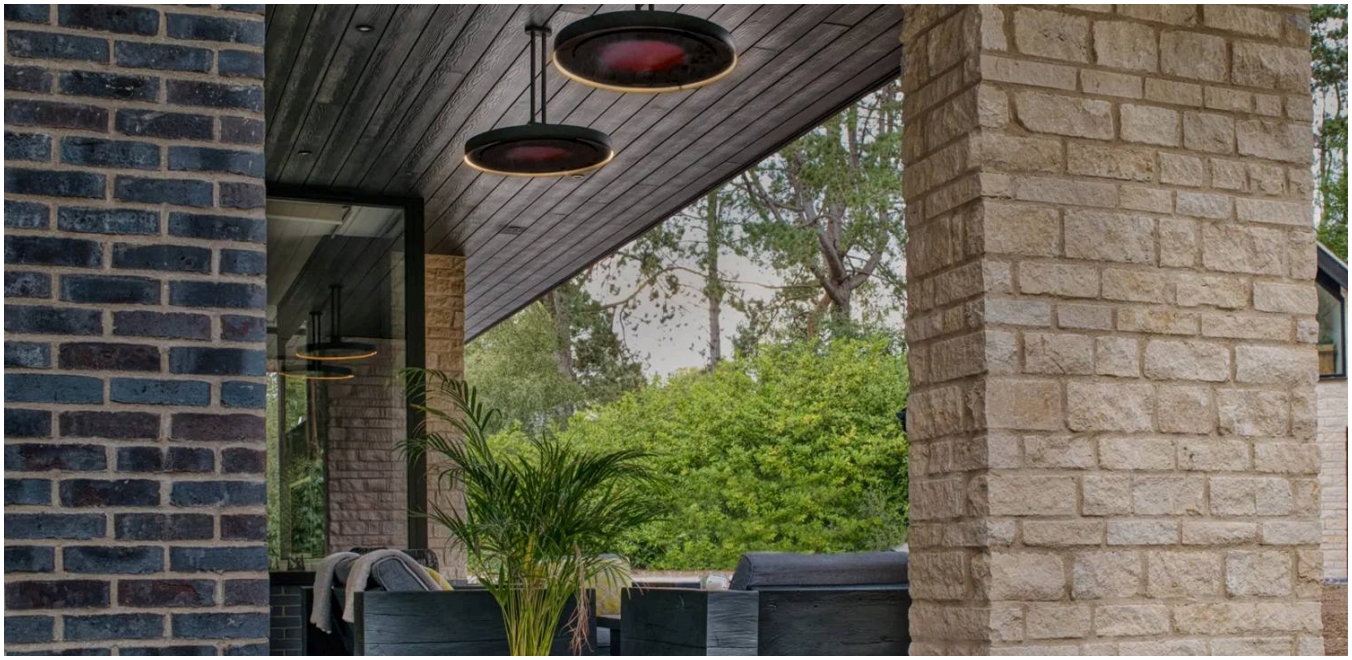
Do all-electric codes ban gas patio heaters?

Read each instrument for three things: **what it regulates** (gas piping, combustion, or heating equipment), **where** (inside the building, the premises, or any equipment), and **when** (new construction, major renovation, or replacement).

JURISDICTION	INSTRUMENT	STATUS AS OF 29 OCT 2026	WHAT IT REGULATES	DOES IT REACH OUTDOOR HEATERS?
New York City	Local Law 154 of 2021 (Admin. Code §24-177.1, §28-506.1)	In force; under 7 stories since 1 Jan 2024, all occupancies from 2 Jul 2027 (by construction-document filing date)[1]	Combustion of fuels at or above 25 kg CO2/MMBtu in new buildings[2]	Not by name. A piped gas heater in a new building has no permitted gas supply. Unpiped, intermittent devices are excepted, but only if they do not supply heat.[2]
New York State	All-Electric Buildings Act (2023)	Upheld by the Second Circuit on 30 Jun 2026; state enforcement had been paused pending appeal[3][4]	Fossil-fuel equipment and building systems in new buildings; 7 stories or less first, others by 1 Jan 2029[4]	Not established.
California (statewide)	2025 Building Energy Efficiency Standards (Title 24, Part 6)	Applies to permit applications from 1 Jan 2026[5]	Heat-pump baselines for indoor space and water heating (prescriptive; not a gas ban)[5][6]	Not found in the sources reviewed.

JURISDICTION	INSTRUMENT	STATUS AS OF 29 OCT 2026	WHAT IT REGULATES	DOES IT REACH OUTDOOR HEATERS?
Berkeley, CA	BMC Chapter 12.80 (2019)	Preempted (9th Cir. 2023); repealed 2024[8][9]	Natural gas piping in new buildings, defined to the property line[7]	Did reach piped outdoor appliances on new premises by definition; no longer in force
Washington State	WSEC-Commercial C403.1.4 (heat-pump space heating); C403.11.1 (heating outside a building)	In force; Initiative 2066 struck down Sep 2026[11][12]	Indoor space heating by heat pump; outdoor heat must be radiant with occupancy or timer control[10]	Yes, C403.11.1 directly: radiant only, and automatic off when unoccupied. Fuel not restricted.
Denver, CO	2025 Denver Energy Code	Effective 31 Dec 2025 / 1 Jan 2026 (city pages differ)[13]	New buildings: no fossil furnaces, no electric resistance space heat, no fossil or electric resistance water heaters, with exceptions[13]	Unclear.
Colorado (statewide)	HB22-1362; Model Electric Ready and Solar Ready Code	DFPC adoption effective 15 Aug 2025[14][15]	Electric-ready provisions in local codes	Electric-ready capacity, not a ban.
Massachusetts	Municipal Fossil Fuel Free Building Demonstration (225 CMR 24.00)	Ten participating municipalities[16]	Fossil fuel in new construction and major renovation, by local by-law[16]	Depends on each town's by-law.

What does New York City's Local Law 154 actually do?



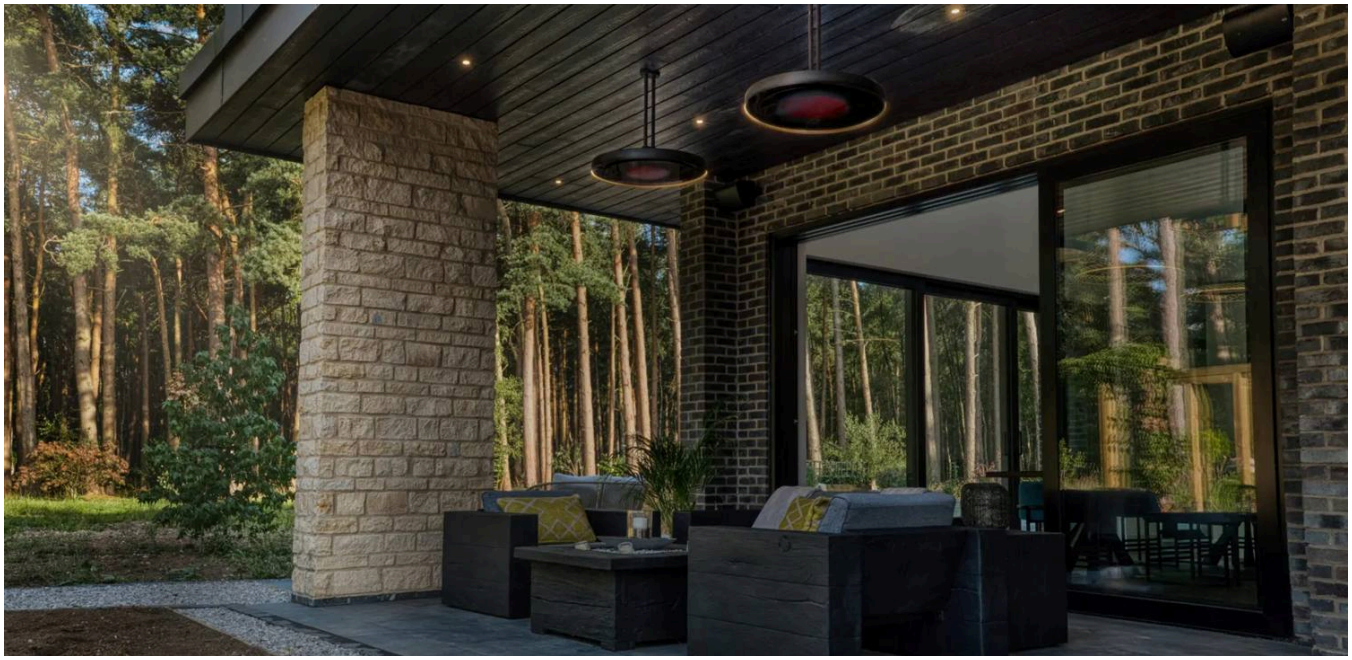
It bars burning fuels that emit 25 kg or more of CO2 per million Btu inside new buildings, which covers natural gas and oil.[2] Dates run from when construction documents are filed: 1 January 2024 for buildings under seven stories, 2 July 2027 for all occupancies.[1] Commercial kitchens, hospitals, laboratories, laundromats, crematoria, manufacturing and emergency power are among the exceptions.[1] Outdoor heaters are not.

The code text also excepts devices not connected to the building's gas or fuel-oil piping, used intermittently, and **not used to supply heat or hot water**.[2] A portable heater is unpiped and intermittent, but supplying heat is its purpose. Whether a portable propane heater on the terrace of a new building falls inside that exception is a question for the Department of Buildings, not for a brochure.

Separately, outdoor dining heat in NYC is governed by fire and right-of-way rules. The 2020 winter guidance allowed electric radiant heaters in sidewalk and roadway seating, natural gas radiant heaters on sidewalks only, and propane only under an FDNY permit.[21] That guidance was written for the emergency programme.

On preemption: on 30 June 2026 the Second Circuit held that federal appliance-efficiency law (EPCA) does not preempt New York's All-Electric Buildings Act or LL154.[3] That conflicts with the Ninth Circuit's Berkeley decision, so further appeal is possible.

What happened in Berkeley, and why does it still matter?



Berkeley's 2019 ordinance prohibited natural gas infrastructure in newly constructed buildings from 1 January 2020.[7] It defined that infrastructure as fuel gas piping in or connected to a building or structure, **or within the property lines of the premises**, from the meter onward.[7] A piped gas heater on a new patio was therefore covered, even though the ordinance never said "heater".

In *California Restaurant Association v. City of Berkeley*, a Ninth Circuit panel held on 17 April 2023 that EPCA preempted the ordinance; rehearing en banc was denied on 2 January 2024, with an amended opinion.[8] Berkeley stopped enforcing and repealed Chapter 12.80 in 2024.[9]

What it teaches: the ruling turned on how the law was written, not on whether electrification is allowed. The Second Circuit read EPCA the other way for New York.[3] Cities in the Ninth Circuit (including California, Washington and Oregon) have moved towards energy-code routes such as heat-pump baselines and reach codes instead. Those routes are less exposed to EPCA but still shape what gets built.

Does California's 2025 Title 24 ban gas?

No. The 2025 Energy Code, which applies to permit applications from 1 January 2026, sets heat pumps as the **baseline** for space and water heating, a dual baseline for new single-family homes.[5] Prescriptive heat-pump space heating now covers all climate zones.[6] Gas remains possible through the performance path, at a compliance cost. In the sources reviewed, these baselines govern heating of conditioned space; we found no Part 6 provision written for patio heaters. Local reach codes in California can be stricter; check the city.

Which energy codes already regulate outdoor heat directly?

This is the provision most specifiers miss. Washington's commercial energy code, adopting the 2021 IECC, requires that any system installed to heat outside a building be **radiant**, and be controlled by an **occupancy sensor or timer switch** so it switches off when no one is present.[10] ASHRAE 90.1 likewise requires radiant heating where unenclosed spaces are heated.[17] The same IECC provision appears in other states that adopt the model code; section numbers vary by edition and state amendment.

Two consequences for design:

1. **Forced-air or convective outdoor heaters are out** on commercial projects under these codes. Radiant is the compliant choice.
2. **Controls are a code item, not a nicety.** Affinity Smart-Heat Controls provide schedules and timers through the Bromic Smart-Heat app, with zones and a manual wall switch.[19] Wi-Fi and app features require compatible Affinity controls, sold separately.

What do Washington, Denver, Colorado and Massachusetts require?

Washington State. The commercial code requires heat-pump space heating (C403.1.4), with the current amended version in effect from 15 March 2024 and supplemental-heat options broadened in December 2024.[11] Initiative 2066, approved by voters in 2024 to curb these provisions, was held unconstitutional in its entirety by the Washington Supreme Court in September 2026.[12] Outdoor heat falls under the radiant-plus-controls rule above, regardless of fuel.[10]

Denver. The 2025 Denver Energy Code prohibits fossil-fuel furnaces, electric resistance space heat and fossil or electric resistance water heaters in new buildings, with exceptions.[13] Electric infrared heaters are resistance devices, so this matters: if Denver treats outdoor radiant heat as "space heat", the rule would restrict electric patio heaters as well as gas. We expect outdoor heat to be handled as heating outside the building envelope, not space heat, but we have not confirmed it. The city's pages give both 31 December 2025 and 1 January 2026 as the effective date.[13]

Colorado. HB22-1362 requires local governments, when they update building codes, to adopt an energy code at least as strong as the 2021 IECC plus model electric-ready and solar-ready provisions.[15] The state fire prevention division's own adoption took effect on 15 August 2025.[14] Electric-ready rules require capacity and pathways for future electric equipment; they do not ban gas.

Massachusetts. State law allows up to ten municipalities to require fossil-fuel-free new construction and major renovation under 225 CMR 24.00. The participants are Acton, Aquinnah, Arlington, Brookline, Cambridge, Concord, Lexington, Lincoln, Newton and Northampton.[16] The model rule exempts research laboratories and health-care facilities; we found nothing written for outdoor appliances.[16] Each town adopts its own by-law.

How do you design an outdoor space electric-ready?

Designed from the start, not added later. The cheapest time to add outdoor heat is before the ceiling closes and the panel schedule is fixed.

Covered outdoor kitchen with flush ceiling heaters

PLANNING ITEM	WHAT TO DO	WHY
Load	Add the heater load to the service calculation: sum the wattage of every planned heater	Avoids a service upgrade later
Circuits	Dedicated branch circuits; conductors at not less than 125% of the heating load per NEC 424[18]	Code requirement for fixed electric space-heating equipment
Voltage	Confirm each model's rated voltage; commercial options have included 208, 240 and 277 V[20]	Voltage drives amperage and circuit count
Panel space	Reserve breaker spaces for every heater zone plus one spare	Late additions are where projects stall
Conduit	Empty conduit with pull string to every future heater and controller location, plus spare conduit to the panel	Lets heat be added without opening finishes
Recess cavities	Frame and block soffit cavities to the recess kit's dimensions	Recessed heaters need depth that is hard to add later
Controls	Locate controllers and wall switches; plan Wi-Fi coverage at controller locations; coordinate any Control4, Crestron or Lutron interface[19]	Controls are required, and energy codes may require occupancy or timer shut-off

PLANNING ITEM	WHAT TO DO	WHY
Zoning	One zone per area used at different times	Lets schedules match use, which saves energy
Damp and wet locations	Boxes, devices and heaters listed for the location[18]	Outdoor locations are damp or wet

How much load does a heater add?

Amps = watts ÷ volts. Circuit conductors are then sized at 125% of that load.[18] Illustration only, at 240 V single-phase:

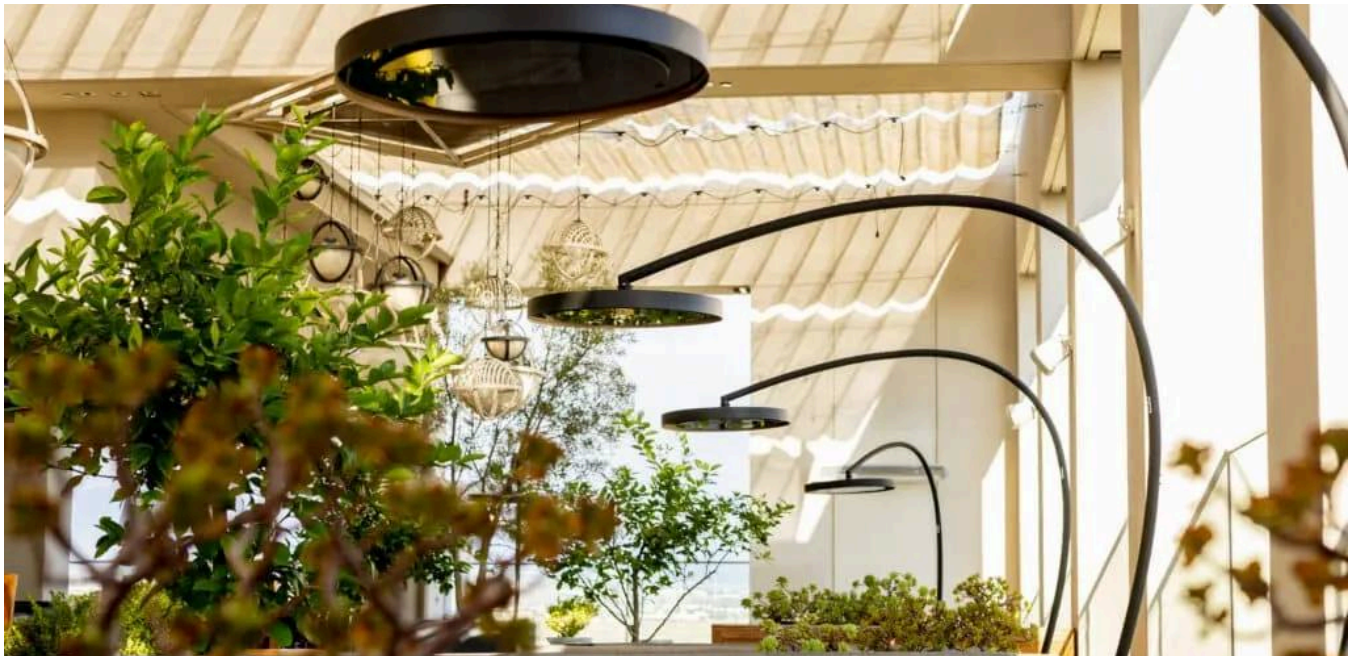
PLATINUM SMART-HEAT ELECTRIC	LOAD AT 240 V	× 125% FOR CONDUCTOR SIZING
2300 W	9.6 A	12.0 A
3400 W	14.2 A	17.7 A
4500 W	18.8 A	23.4 A

Your electrician sizes the circuit and protective device to the adopted NEC and the nameplate.

Electric radiant, piped gas or propane: how do they compare on code exposure?

FACTOR	ELECTRIC RADIANT (BUILT-IN)	PIPED NATURAL GAS (BUILT-IN)	PROPANE (PORTABLE)
All-electric new buildings (NYC LL154, NY State)	Compatible	No gas supply in an all-electric building	Narrow, unclear exception
Heat-pump-baseline energy codes (CA 2025)	Not affected in sources reviewed	Not banned; indoor heating baseline does not address it	Not affected in sources reviewed
Outdoor heating rule (IECC/WSEC C403.11.1)	Compliant when radiant and on occupancy/timer control	Compliant when radiant and controlled	Compliant when radiant; automatic shut-off is harder
Property-line gas definitions (Berkeley model)	Not affected	Covered	Not piped; depends on wording
Denver 2025 "electric resistance space heat"		Fossil restrictions may apply	Depends on scope
Permitting path	Electrical permit; licensed electrician	Plumbing/mechanical permit; licensed gas fitter; ANSI Z223.1/NFPA 54[20]	Fire-department rules on storage and use
Controls and scheduling	Affinity controllers, wall switch, app schedules and zones[19]	Gas controls per model	Manual at the unit
Future-proofing	Aligns with every direction of travel	Exposed to new local rules	Exposed to fire and local rules

Planning checklist



- [ ] Identify the AHJ and every instrument that applies: city law, state code, reach code, fire code.
- [ ] Note the dates: application filing date often decides which rules apply.
- [ ] Ask whether the AHJ treats outdoor radiant heat as "space heating" (Denver) or as heating outside the envelope.
- [ ] Specify radiant heaters with occupancy or timer control on commercial projects.
- [ ] Include outdoor heater load in the service calculation; reserve panel space.
- [ ] Rough in conduit, boxes and recess framing before finishes.
- [ ] Schedule controls for every zone: Affinity On/Off, Dimmer or Eclipse controller, wall switch, app.
- [ ] Use the spec kit's Section 23 83 33 so the electric solution is not swapped at bid.

Key takeaways

- Most all-electric laws restrict gas **inside new buildings**, not patio heaters by name. The effect on the terrace is indirect but real.
- Commercial energy codes already require outdoor heat to be **radiant** and to switch off when no one is there. Controls are part of compliance.
- Courts are split on federal preemption (Ninth Circuit vs Second Circuit), so expect continued change.
- Electric radiant heat, designed in early with its controls, is compatible with every rule reviewed here.

FAQ

Can I install a gas patio heater on a new building in New York City?

Not on piped gas: a new building under LL154 has no permitted gas supply. Portable devices fall under a narrow exception whose application to heaters is unclear; ask the Department of Buildings and FDNY.[2]

Did the Berkeley ruling end gas bans?

It ended Berkeley's, and constrains similar ordinances in the Ninth Circuit. The Second Circuit upheld New York's laws in 2026, so the question is unsettled nationally.[38]

Does California's 2025 Energy Code ban gas heaters?

No. It makes heat pumps the baseline for indoor space and water heating; gas remains possible through the performance path.[5]

Do energy codes say anything about outdoor heaters?

Yes. Under IECC-based commercial codes such as Washington's, outdoor heating must be radiant and controlled by an occupancy sensor or timer.[10]

Are electric outdoor heaters affected by bans on electric resistance heat?

Possibly in Denver, where new buildings may not use electric resistance space heat. Confirm with the city how outdoor radiant heaters are classified.[13]

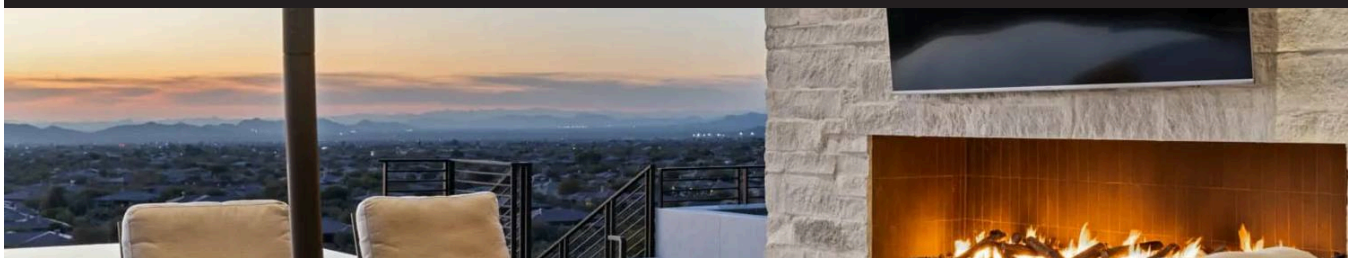
Disclaimer

This guide is general information, not legal or code advice. It summarises laws and codes as of 29 October 2026 from the sources cited, some of which are secondary summaries. Requirements vary by jurisdiction, edition, amendment and filing date. Always confirm with the local building authority, fire department and energy code official, and have electrical work designed and installed by a licensed electrician and gas work by a licensed gas fitter. Read the primary source for every rule before you rely on it.

Specify the electric solution in Section 23 83 33 with the spec kit.

NEXT STEP

Download the spec kit



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Confirm every installation with your local building authority and a licensed electrician or gas fitter. Wi-Fi and app features need compatible Affinity Smart-Heat controls, sold separately. © 2026 Bromic Heating · bromic.com